



US0D1092946S

(12) **United States Design Patent** (10) **Patent No.:** **US D1,092,946 S**
Wehrmeyer (45) **Date of Patent:** **** Sep. 16, 2025**

(54) **FOOTWEAR UPPER**

(71) Applicant: **Wolverine Outdoors, Inc.**, Rockford,
MI (US)

(72) Inventor: **Brenton S. Wehrmeyer**, Grand Rapids,
MI (US)

(73) Assignee: **Wolverine Outdoors, Inc.**, Rockford,
MI (US)

(**) Term: **15 Years**

(21) Appl. No.: **29/897,314**

(22) Filed: **Jul. 13, 2023**

(51) **LOC (15) Cl.** **02-04**

(52) **U.S. Cl.**
USPC **D2/970**

(58) **Field of Classification Search**

USPC D2/896, 900, 902, 904, 906-908,
D2/916-924, 925-945, 947-960, 969-979
CPC A43B 1/00; A43B 1/02; A43B 1/04; A43B
3/00; A43B 3/02; A43B 3/06; A43B 3/10;
A43B 3/12; A43B 3/14; A43B 5/00;
A43B 5/001; A43B 5/008; A43B 5/10;
A43B 5/12; A43B 23/00; A43B 23/02;
A43B 23/04

See application file for complete search history.

(56) **References Cited**

U.S. PATENT DOCUMENTS

4,532,724 A * 8/1985 Okoshi A43B 7/36
36/7.1 R
D291,140 S * 8/1987 Gjendemsjo D2/901
4,918,839 A * 4/1990 Brandon A43B 3/163
36/97
5,067,260 A * 11/1991 Jenkins, Jr. A43C 1/06
36/7.1 R
D445,241 S * 7/2001 Maturaporn D2/910

D581,143 S * 11/2008 Hubner D2/924
D581,647 S * 12/2008 St-Louis D2/970
D692,214 S * 10/2013 Blumkin D2/911
D731,763 S * 6/2015 Solstad D2/910
D769,599 S * 10/2016 White D2/970
(Continued)

OTHER PUBLICATIONS

Men Agility Peak 5 Gore-Tex Zip-Off 1TRL Casual _ Merrell,
posted [online], [retrieved May 15, 2025]. Retrieved from internet,
<https://www.merrell.com/US/en/agility-peak-5-gore-tex-zip-off-1trl/195020395011.html> (Year: 2025).*

(Continued)

Primary Examiner — Amber R Stiles

Assistant Examiner — Christen Pilar Brown-Lorrig

(74) *Attorney, Agent, or Firm* — Warner Norcorss + Judd
LLP

(57) **CLAIM**

The ornamental design for a footwear upper as shown and
described.

DESCRIPTION

FIG. 1 is a perspective view of a footwear upper embodying
the new design;

FIG. 2 is a top view thereof;

FIG. 3 is a bottom view thereof;

FIG. 4 is a right side view thereof;

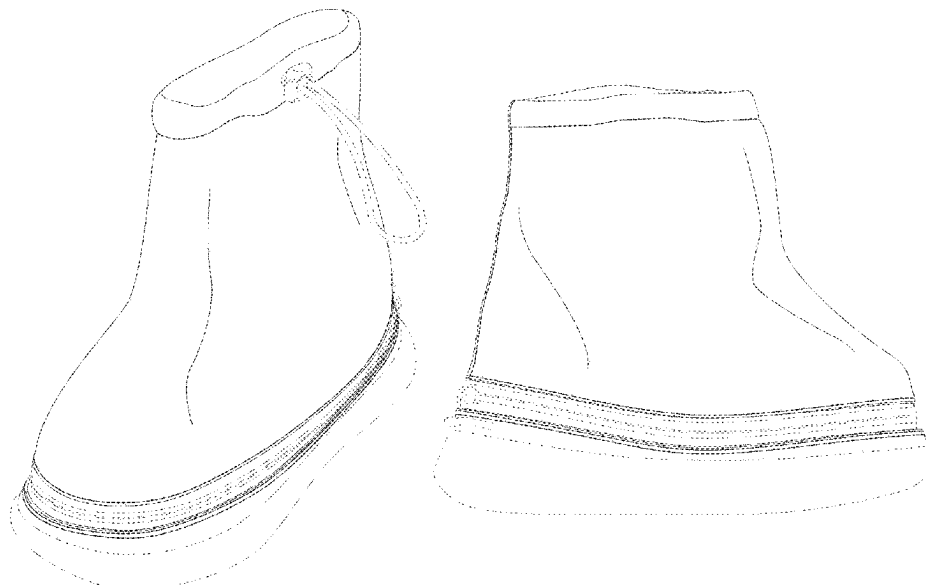
FIG. 5 is a left side view thereof;

FIG. 6 is a front view thereof; and,

FIG. 7 is a rear view thereof.

The figures show features of an article of footwear with
dot-dot-dash broken lines that form no part of the claimed
design. Further, the dot-dot-dash broken lines immediately
adjacent the portions shown in solid lines form the boundary
of the design, with the broken lines forming no part of the
claimed design. The even length broken lines in the figures
depict stitching, which forms part of the claimed design.

1 Claim, 7 Drawing Sheets



(56)

References Cited

U.S. PATENT DOCUMENTS

D825,152	S	*	8/2018	Will		D2/900
D872,427	S	*	1/2020	Sachs		D2/970
D873,541	S	*	1/2020	Wu		D2/960
D919,104	S	*	5/2021	Woolf		D24/189
D922,753	S	*	6/2021	Kim		D2/910
D1,000,050	S	*	10/2023	Viti		D2/912
D1,003,590	S	*	11/2023	Kim		D2/970
D1,062,159	S	*	2/2025	Yarborough		D2/970

OTHER PUBLICATIONS

Steep and Cheep, Rocky Mountain Low Gaiter (<https://www.steepandcheap.com/outdoor-research-rocky-mountain-low-gaiter>), at least as Jul. 12, 2023.

Ali Saulidi, Hybrid Drawstring Leather Backpack (<https://ali-saulidi.com/products/hybrid-drawstring-leather-backpack>), at least as Jul. 12, 2023.

* cited by examiner



FIG. 1

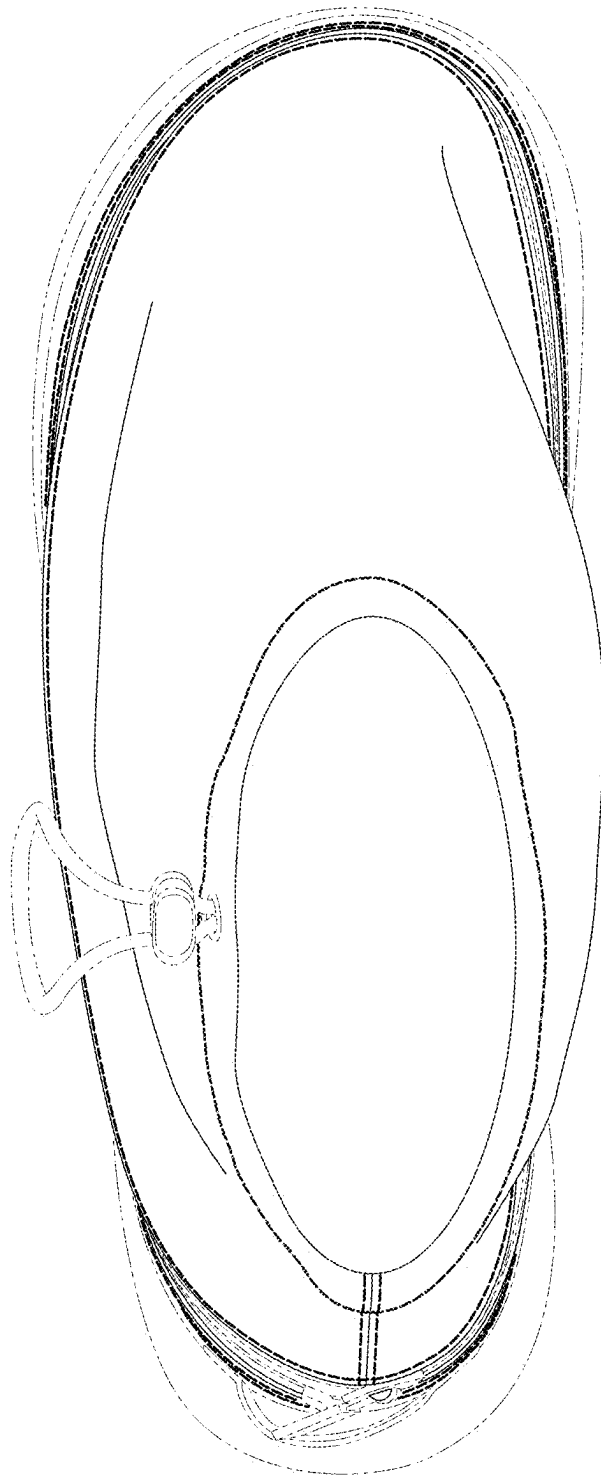


FIG. 2

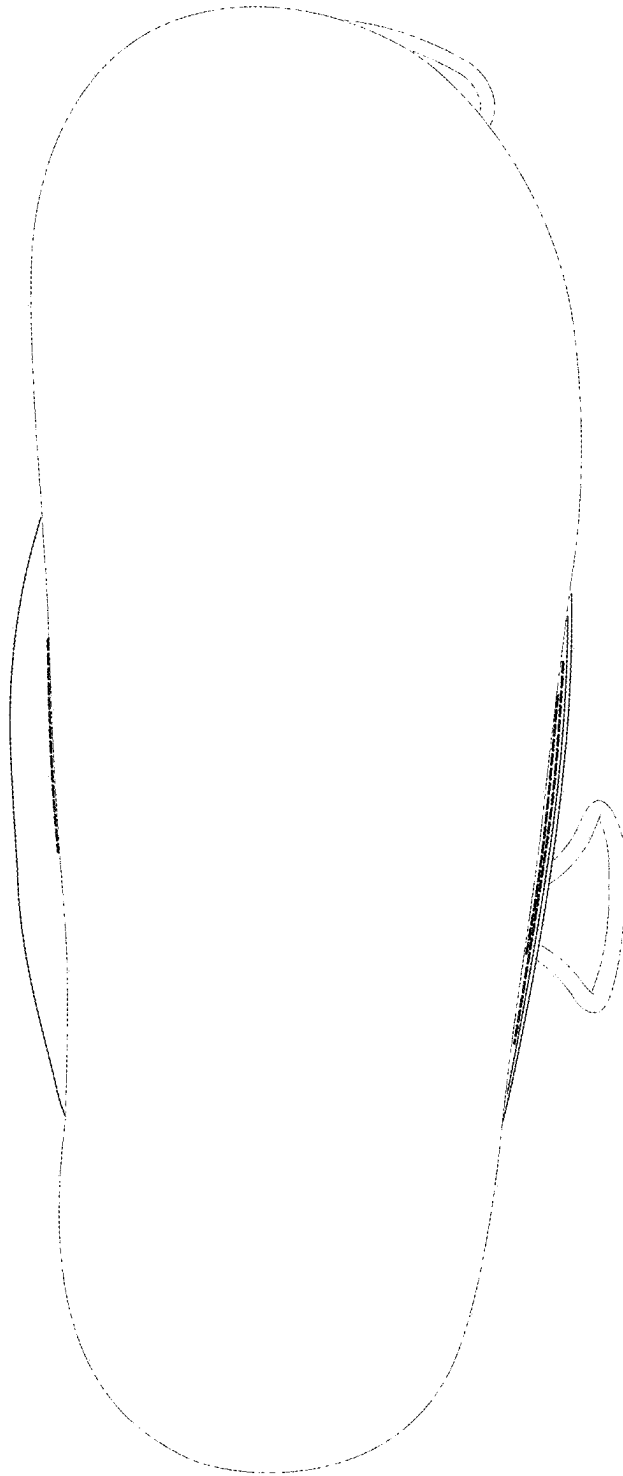


FIG. 3

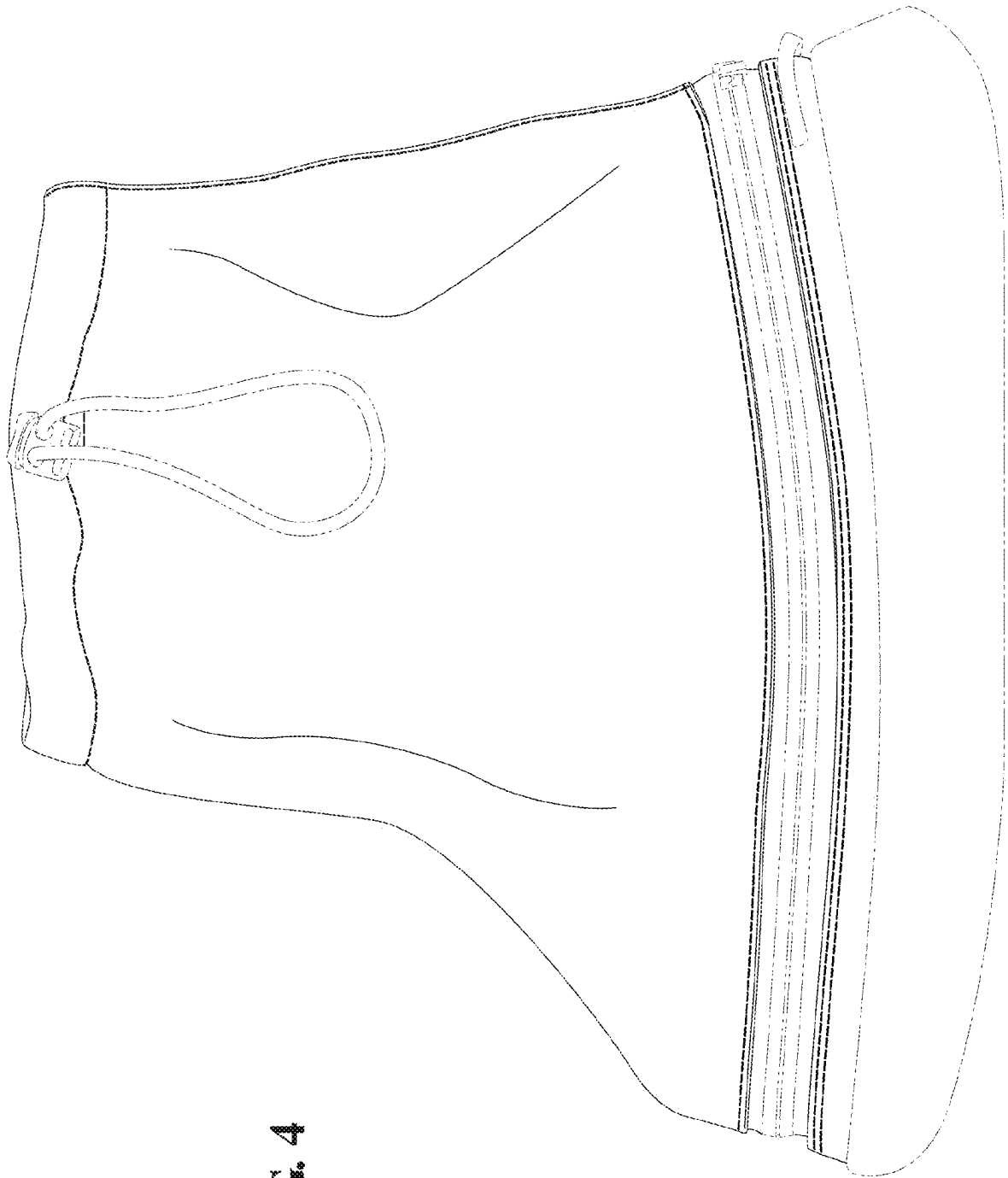
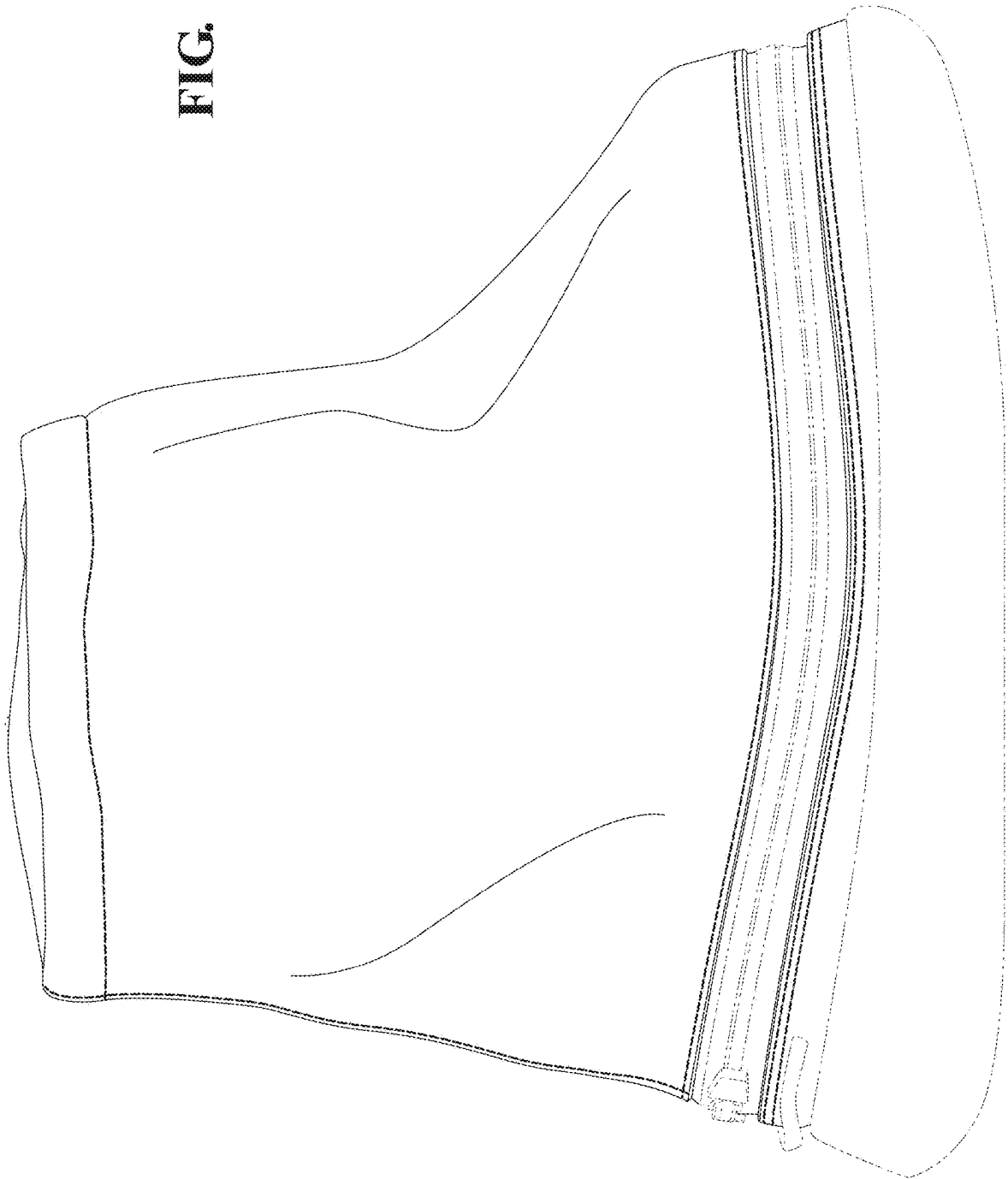


FIG. 4

FIG. 5



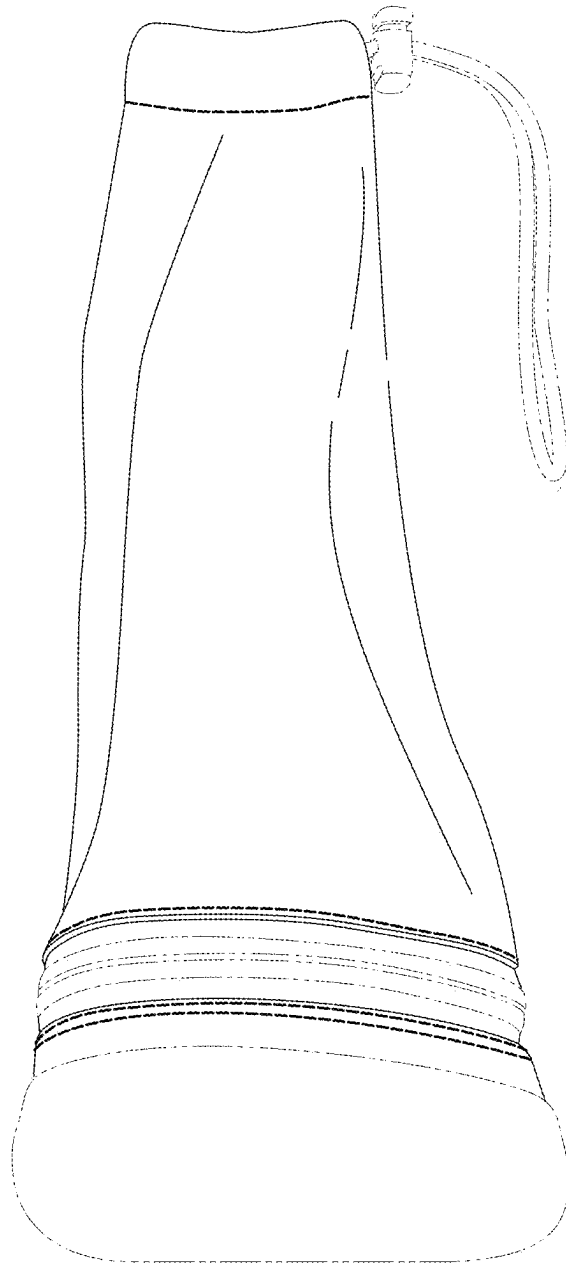


FIG. 6

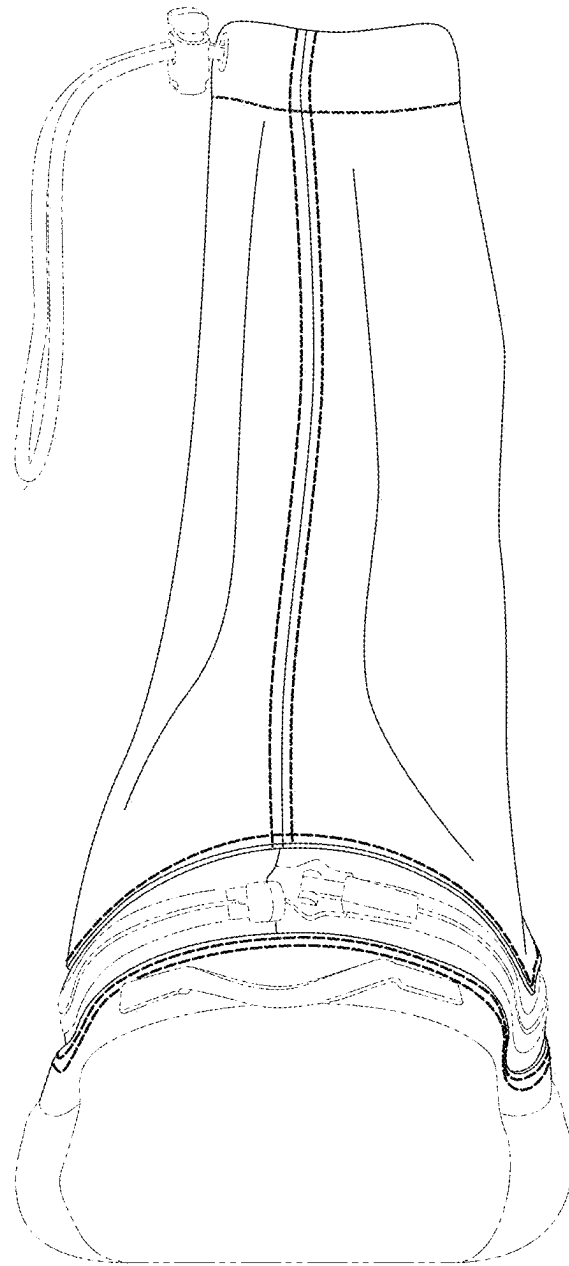


FIG. 7